
MUTUAL NON-DISCLOSURE AND EMPLOYMENT AGREEMENT

This Mutual Non-Disclosure and Employment Agreement ("Agreement") is entered into as of January 1, 2025 ("Effective Date") by and between NovaTech Solutions Inc., a Delaware corporation ("Company"), and Jordan Riley ("Employee"). This Agreement governs the employment relationship and sets forth the terms and obligations of both parties.

Section 1. At-Will Employment

Employee's employment with Company is at-will, meaning either party may terminate the employment relationship at any time, with or without cause, and with or without notice. Nothing in this Agreement shall be construed to create a contract of employment for any specific period of time. Notwithstanding the foregoing, Company reserves the right to terminate Employee immediately and without severance payment for any reason whatsoever, including performance concerns, restructuring, or business conditions.

Section 2. Compensation and Benefits

Employee shall receive an annual base salary of \$95,000, payable in accordance with Company's standard payroll schedule. Employee shall be eligible for an annual performance bonus at the sole and absolute discretion of Company management. Company may modify, reduce, or eliminate any compensation or benefit at any time without prior notice to Employee. Employee acknowledges that bonus targets, if communicated, are aspirational and non-binding.

Section 3. Confidentiality

Employee agrees to hold in strict confidence all information, whether written, oral, or in any other form, that Employee receives, accesses, or becomes aware of in connection with employment, including but not limited to business plans, customer lists, financial data, product roadmaps, source code, trade secrets, pricing, and any information designated or reasonably considered confidential ("Confidential Information"). This obligation applies during employment and shall survive termination PERMANENTLY and without limitation. Employee acknowledges that Company's confidential information has no geographic boundary. This obligation is one-directional: Company bears no confidentiality obligation to Employee. Breach of this section shall entitle Company to seek injunctive relief without bond or security, in addition to all other remedies available at law or in equity.

Section 4. Intellectual Property Assignment

Employee hereby irrevocably assigns to Company all right, title, and interest in and to any and all inventions, discoveries, developments, improvements, software, works of authorship, and other intellectual property ("Work Product") conceived, created, developed, or reduced to practice by Employee, whether alone or jointly with others, at any time during or after employment, whether or not using Company equipment, facilities, or time, and whether or not related to the Company's current or anticipated business. Employee waives all moral rights in the Work Product to the fullest extent permitted by law. There shall be no carve-out for inventions made on Employee's personal time and unrelated to Company business.

Section 5. Non-Competition

For a period of three (3) years following the termination of employment for any reason, Employee shall not, directly or indirectly, anywhere in the world: (a) engage in, own, manage, operate, control, finance, or participate in any business that is competitive with or similar to Company's current or future business; (b) serve as an employee,

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officer, director, consultant, or advisor to any such competitive entity; or (c) develop, market, or sell any product or service that could be construed as competitive with any product Company has developed, is developing, or may develop in the future. Employee acknowledges that this restriction is reasonable and necessary to protect Company's legitimate business interests. Violation shall entitle Company to liquidated damages of \$500,000 per violation.

Section 6. Non-Solicitation

For a period of two (2) years following termination, Employee shall not, directly or indirectly: (a) solicit, recruit, or hire any employee of Company, or induce any employee to leave Company's employ; (b) solicit, contact, or accept business from any customer, client, or prospective customer of Company, regardless of whether Employee had direct contact with such customer during employment. Employee further agrees not to encourage any third party to reduce or terminate its relationship with Company.

Section 7. Indemnification

Employee shall indemnify, defend, and hold harmless Company, its officers, directors, employees, and agents from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (a) any breach by Employee of this Agreement; (b) Employee's gross negligence or willful misconduct; or (c) any claim that Employee's prior work or background infringes third-party intellectual property rights. Company's obligation to indemnify Employee is expressly excluded. Employee's indemnification obligation is unlimited and not subject to any cap.

Section 8. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL COMPANY BE LIABLE TO EMPLOYEE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOST WAGES OR LOST PROFITS, ARISING OUT OF OR RELATED TO THIS AGREEMENT OR EMPLOYEE'S EMPLOYMENT, EVEN IF COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. COMPANY'S TOTAL AGGREGATE LIABILITY TO EMPLOYEE SHALL NOT EXCEED \$100. NO EQUIVALENT CAP APPLIES TO EMPLOYEE'S LIABILITY TO COMPANY.

Section 9. Dispute Resolution and Arbitration

Any and all disputes, claims, or controversies arising out of or relating to this Agreement or Employee's employment shall be resolved exclusively by binding arbitration administered by a single arbitrator selected by Company. Employee expressly waives any right to participate in class or collective action proceedings. Employee shall bear all costs of arbitration, including arbitrator fees and administrative costs. Company retains the right to seek injunctive or other equitable relief in any court of competent jurisdiction. The decision of the arbitrator shall be final and non-appealable.

Section 10. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles. Any legal proceedings not subject to arbitration shall be brought exclusively in the state or federal courts located in Wilmington, Delaware. Employee consents to personal jurisdiction in such courts and waives any objection to venue.

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Section 11. Termination

Company may terminate this Agreement and Employee's employment immediately and without notice for any reason, including but not limited to performance issues, business conditions, or restructuring. Upon termination, Employee shall receive only accrued but unpaid base salary through the date of termination. No severance, continuation pay, or benefits continuation shall be provided, regardless of the reason for termination or length of service. Employee's post-termination obligations under Sections 3, 4, 5, and 6 shall survive termination indefinitely.

NovaTech Solutions Inc.

Signature: _____

Name: Alexandra Chen, CEO

Date: _____

Employee

Signature: _____

Name: Jordan Riley

Date: _____